

**Appearances:** Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

**Public Access:** The courtroom remains open for all evidentiary and non-evidentiary proceedings.

*No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.*

**TENTATIVE RULINGS**  
**June 18, 2026**

| #  | Case Name                                                                           | Tentative            |
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| 1. | <a href="#"><u>30-2022-01294879-CU-BC-CJC</u></a><br><b>Elshenawi vs. Elshenawi</b> | No tentative ruling. |

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| 2. | <a href="#"><u>30-2024-01438047-CU-BC-WJC</u></a><br><b>Scarcella vs. Witherill</b> | <p>Before the Court are two (2) motions: Motion to Compel Further Responses for Request for Production (ROA 437) and Motion to Compel Further Responses for Request for Production (ROA 446).</p> <p>On May 18, 2026, Plaintiff Chris Scarcella (“Plaintiff Scarcella”) and Plaintiff Melissa Edwards (“Plaintiff Edwards”) (collectively “Plaintiffs”) filed amended motions, separate statements, and a declaration against Defendant Brittini Witherill (“Defendant Witherill”) and Defendant Alex Antonescu (“Defendant Antonescu”) (collectively “Defendants”). <i>See</i> ROAs 383, 387, 397, 398, 400.</p> <p>On May 29, 2026, Plaintiffs filed further supplemental amended motions, which narrowed the scope of issues before the Court. <i>See</i> ROAs 437, 441, 445, 446, 435, 442. On June 5, 2026, Defendants filed their Opposition and Declaration to Plaintiffs’ Motions. ROAs 461, 463. On June 8, 2026, Plaintiffs filed their Reply to Defendants’ Opposition. ROA 467.</p> <p>Defendants argue that Plaintiffs’ motions are moot and request that the Court deny Plaintiffs’ Motions and impose sanctions in the amount of \$3,000 against Plaintiffs for misuse of the discovery process. ROA 461.</p> <p>Plaintiffs request that the Court grant their Motions, deny the sanctions requested by Defendants, and impose sanctions against Defendants in the amount of \$2,000. ROA 446.</p> <p style="text-align: center;">I. Untimely Oppositions</p> <p>The Court has broad discretion to accept or reject late filed papers filed beyond the deadline without a prior court order finding good cause for the late submission. Cal. Rules of Court, Rule 3.1300(d); <i>see also Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i>, 2 Cal. App. 5th 252, 262–263 (2016); <i>Samaniego v. Empire Today LLC</i>, 205 Cal. App. 4th 1138, 1146 (2012).</p> <p>Here, Defendants’ Opposition was due no later than June 1,</p> |
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